

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

Eynck is in his capacity as a percipient witness and thus no privileges apply to his reports and other documents related to the flooding and drainage issues surrounding the property at issue in 2017. Moreover, the email correspondences are not subject to the attorney-client and attorney work product privileges. Defendants meet their initial burden that the email correspondence between their former counsel of record, Bob Eynck, and defendant Richard Cook are subject to the attorney-client and attorney work product privilege. (*Venture Law Group v. Superior Court* (2004) 118 Cal.App.4th 96, 102.) Plaintiffs thereafter meet their burden to establish defendants waived their privileges when defendant Richard Cook did not object to the privileged materials being introduced and discussed at his deposition. (*Ibid.*; Evid. Code, § 912.)

Plaintiffs' motion is therefore granted. Bob Eynck shall appear and provide deposition testimony, without producing any documents, within seven (7) days after service of the order after hearing.

Plaintiffs' request for sanctions is denied.

11. S-CV-0052012 MENDIOLA, VENANZIO v. HYUNDAI OF ROSEVILLE

Plaintiff's Motion for an Order Approving Settlement of Claims Brought Pursuant to the Private Attorneys General Act of 2004, Awarding Attorneys' Fees, Costs, Service Payment, and Reimbursement of Settlement Administration Expenses

The unopposed motion is granted. The court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*O'Connor, supra*, 201 F.Supp.3d at p. 1120.) The court has carefully reviewed and considered the PAGA Settlement Agreement and plaintiff's moving papers filed in connection with the motion. The court has also reviewed the supplemental declaration of Justin Lo. The court determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

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